

Amendment No. 2 to HB1707

Behn
Signature of Sponsor

AMEND Senate Bill No. 1952

House Bill No. 1707*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 16, Chapter 1, is amended by adding the following as a new section:

(a) Each court shall cooperate with the United States department of homeland security and federal immigration authorities acting in the enforcement of federal immigration law.

(b) A judge who obstructs lawful operations by the United States department of homeland security or federal immigration authorities acting in the enforcement of federal immigration law may be referred to the board of judicial conduct for proceedings pursuant to title 17, chapter 5, part 3, and any findings by the board that the judge committed judicial misconduct may be cause for removal pursuant to the Constitution of Tennessee, Article VI, § 6.

(c) This section does not require a judge to:

(1) Deviate from the Tennessee Rules of Criminal Procedure, the Tennessee Rules of Civil Procedure, or applicable constitutional requirements in a proceeding;

(2) Comply with an immigration detainer request that is not supported by a judicial warrant issued pursuant to the fourth amendment of the United States Constitution;

(3) Delay, continue, or otherwise alter the schedule of court proceedings to accommodate federal immigration enforcement operations; or

(4) Disclose the immigration status of a party, witness, or individual appearing before the court.

(d) As used in this section, "obstruct":

(1) Means the intentional physical interference with a lawful immigration enforcement operation conducted pursuant to a valid judicial warrant; and

(2) Does not include:

(A) A judicial ruling, order, or decision made in the course of adjudicating a case;

(B) A scheduling decision made in the ordinary course of court administration;

(C) A decision regarding bail, bond, or pretrial release; or

(D) A decision to exclude immigration enforcement personnel from courthouse proceedings.

(e) Notwithstanding subsection (a), a court shall not comply with a request from federal immigration authorities to detain an individual beyond the time otherwise required by law unless such request is accompanied by a judicial warrant issued by a federal magistrate or district court judge pursuant to the fourth amendment of the United States Constitution.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.